

Court No. - 3

Case :- WRIT - C No. - 12583 of 2022

Petitioner :- Guddu Prajapati

Respondent :- U.P Power Corporation Limited And 3 Others

Counsel for Petitioner :- Dharendra Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard Sri Dharendra Kumar Srivastava, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Udit Chandra, learned counsel for the respondent Nos.1 & 2.

This writ petition has been filed praying for the following relief:

"i. a writ, order or direction in the nature of certiorari quashing the impugned Recovery Citation dated 15.01.2022 issued by respondent no. 4 for recovery of electricity dues amounting rupees 6,13,867/- and others."

Sri Udit Chandra, learned counsel for the respondent Nos. 1 & 2 U.P. Power Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under **Para 6.8 of U.P. Electricity Supply Code, 2005** before the respondent No.2, Executive Engineer, Vidyut Vitaran Khand-II, U.P. Power Corporation Limited, Mughalsarai, Chandauli within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 15.7.2022

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